

and identical directors and officers. (*Sonora Diamond Corp.*, *supra*, 83 Cal.App.4th at 538-539.)

As the claim against Empire fails, this also fails.

### *Pivot Time*

In contrast to Angel, Pivot Time is not sued under the 1st cause of action for breach of contract. Thus, it cannot be liable for breach of contract under an alter ego theory—the theory that is the basis in the application. Instead, Plaintiffs have sued Pivot Time for breach of implied contract under the 5th cause of action, which is based on principles of unjust enrichment (SAC ¶129), which the Trust did not argue. Accordingly, without alter ego as to the 1st cause of action, the application is denied.

### 3.

| CASE #      | CASE NAME                                           | HEARING NAME                                       |
|-------------|-----------------------------------------------------|----------------------------------------------------|
| CVRI2506872 | EVER PROSPEROUS<br>REALTY INC. vs<br>PROVIDENT BANK | MOTION TO QUASH SERVICE OF<br>SUMMONS ON COMPLAINT |

### **Tentative Ruling:**

The Motion to Quash Service of Summons filed by Specially Appearing Defendants Isaac Louz and Rachman Louz (the “Louz Defendants”) is granted.

Based on the declaration of Isaac Louz, the Court finds that the Louz Defendants have not been personally served with the initiating paperwork in this action. Furthermore, Defendant Isaac Louz does not live in California and does not regularly conduct business within the state in his personal capacity. The Louz Defendants object to the Court’s jurisdiction on the grounds that they lack minimum contacts with the state and have not been properly served.

### LEGAL STANDARD

Under Code of Civil Procedure section 418.10(a)(1), a defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. Once a defendant files a motion to quash, the burden is on the plaintiff to establish by a preponderance of the evidence that the court has jurisdiction over the moving defendant, as held in *Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991; *ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 209-210.

California’s long-arm statute, Code of Civil Procedure section 410.10, authorizes courts to exercise jurisdiction "on any basis not inconsistent with the Constitution of this state or of the United States". Due process requires that a nonresident defendant have "minimum contacts" with the forum state such that the exercise of jurisdiction does not

offend "traditional notions of fair play and substantial justice," a standard established in *International Shoe Co. v. State of Wash.* (1945) 326 U.S. 310, 316.

### *Specific Jurisdiction*

Specific jurisdiction exists only if (1) the defendant has purposefully availed himself of forum benefits; (2) the controversy arises out of the defendant's contacts with the forum; and (3) jurisdiction comports with fair play and substantial justice (*Pavlovich v. Superior Court* (2002) 29 Cal. 4th 262, 269). The relationship must arise out of contacts the "defendant himself" creates with the forum state, not from the unilateral activity of the plaintiff (*Walden v. Fiore* (2014) 571 U.S. 277, 283–284).

In this case, the Louz Defendants contend they have no pervasive contacts with California. Mere knowledge that a plaintiff is located in California—or that harm might be suffered there—is insufficient to constitute purposeful direction (*Pactec Holdings, LLC v. Shanghai Zhongyan Info. Tech. Co.* (2025) 2025 WL 750913). Furthermore, simply entering into a contract with a California resident does not automatically subject a nonresident to specific jurisdiction (*Aquila, Inc. v. Superior Ct.* (2007) 148 Cal. App. 4th 556, 572).

### *Purposeful Direction*

For tort claims, the Court applies a "purposeful direction" test, requiring evidence of intentional conduct deliberately targeting the forum state (*Casey v. Hill* (2022) 78 Cal.App.5th 1143, 1170). The Plaintiff's complaint fails to establish any such connection or purposeful targeting of California by the Louz Defendants.

### *Lack of Opposition*

The Court further notes that the Plaintiff has not filed an opposition to this motion. Under *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20, a failure to oppose may be deemed an abandonment of the issue. The Court considers the lack of opposition to be an admission that the motion is meritorious.

4.

| CASE #      | CASE NAME                                 | HEARING NAME                    |
|-------------|-------------------------------------------|---------------------------------|
| CVRI2507321 | GALLANT vs ORANGE<br>TREEIDENCE OPCO, LLC | MOTION TO COMPEL<br>ARBITRATION |

### **Tentative Ruling:**

Defendant's Motion to Compel Arbitration as to the 1st, 2nd, and 3rd causes of action, is granted; conditioned on Defendant's election to advance plaintiff's share of the arbitration cost under *Roldan v. Callahan & Blaine* (2013) 219 Cal.App.4th 87, 96; as to Plaintiff Laura Caitlin Gallant Hurtado's individual 4th cause of action for wrongful death, it is denied. Entire Action is stayed pending completion of arbitration.